

THE HON'BLE JUSTICE MOUSHUMI BHATTACHARYA

WRIT PETITION NO.389 OF 2025

Mr. Syed Azmatullah, learned counsel for the petitioner.

Mr. K.Gowtham Reddy, learned Assistant Government Pleader for Mines and Geology appearing for the respondent Nos.1, 2 and 4.

Mr. Sri B. Ramulu, learned Standing Counsel for the respondent No.3.

Mr. Y. Randheer, learned Assistant Government Pleader for Forests appearing for the respondent No.5.

ORDER:

The only prayer in the writ petition is for a direction on the respondents to consider the representation made by the petitioner on 02.12.2024 for principle allotment of Sand Bearing Area at Tekulagudem Village, Wazeedu Mandal, Mulugu District.

2. According to learned counsel appearing for the petitioner, the petitioner-Society seeks to make a livelihood from de-casting of sands from the particular area in Mulugu District. However, even according to the petitioner's own document dated 08.11.2023 issued by the Forest Department, Government of Telangana, the particular area has been classified as an "Eco-Sensitive Zone" (ESZ).

3. The petitioner has not been able to show any right as to how the petitioner is entitled to de-cast the sand from the land

of other pattadars or any existing arrangement by which the petitioner is doing so.

4. The learned Assistant Government Pleader for Forests as well as the learned Government Pleader for Mines submit that there are several Government Notifications/Circulars regulating the process of de-casting of sand from certain areas including ESZ.

5. After hearing learned counsel, this Court is of the view that the Writ Court cannot give any relief to the petitioner also in view of the representation dated 02.12.2024 which is incomplete and does not reflect any specific demand. The respondent-authorities would be the most suitable persons to dispose of the writ petition with regard to the Records and Circulars which are in their possession.

6. W.P.No.389 of 2025 is accordingly disposed of by directing the respondent No.2/The District Level Sand Committee to consider the representation dated 02.12.2024 or any fresh representation given by the petitioner within a period of 4 weeks from the date of receipt of the representation from the petitioner. The respondent No.2 shall give an opportunity of personal hearing to the representatives of the petitioner and pass a reasoned order, a copy of which shall be made available

to the petitioner within 7 days from the date on which the reasoned order is passed. The respondent No.2 shall be at liberty of taking the Reports filed by the respondent No.5/District Forest Officer, Mulugu District, into consideration before passing the reasoned order.

7. Interim orders, if any, shall stand vacated and all connected applications are disposed of. There shall be no order as to costs.

MOUSHUMI BHATTACHARYA, J

Date: 07.01.2025
ssp/vsu